

8. 9:00 AM CASE NUMBER: C24-01622
CASE NAME: CHRISTOPHER JARZYNKA VS. TATILA DOWNING
***HEARING ON MOTION IN RE: AMEND COMPLAINT**
FILED BY: JARZYNKA, CHRISTOPHER THOMAS
TENTATIVE RULING:

Plaintiff's unopposed motion to amend the complaint is granted for the reasons stated in the motion.

Plaintiff shall file the amended complaint by January 5, 2026.

9. 9:00 AM CASE NUMBER: C25-00144
CASE NAME: YONGCHAN PARK VS. MICHAEL YANG
HEARING ON SUMMARY MOTION BY PLAINTIFF
FILED BY:
TENTATIVE RULING:

Appearance required.

10. 9:00 AM CASE NUMBER: C25-00498
CASE NAME: MARY AFFINITO VS. DE LA HOUSAYE & ASSOCIATES, ALC
***HEARING ON MOTION IN RE: TO TAX COSTS**
FILED BY: DE LA HOUSAYE & ASSOCIATES, ALC
TENTATIVE RULING:

Cross-complainant's unopposed motion to tax costs is granted for the reasons stated in the motion.

11. 9:00 AM CASE NUMBER: C25-01478
CASE NAME: EMAD ISKANDER VS. JOAN OCAMPO (EMPLOYEE)
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: JOAN OCAMPO (EMPLOYEE)
TENTATIVE RULING:

Defendant's unopposed demurrer to the complaint is sustained without leave to amend.

As mentioned, plaintiff filed no opposition to the demurrer, so no allegations or facts are advanced at this juncture to provide leave to amend.

12. 9:00 AM CASE NUMBER: C25-01624

CASE NAME: ROSS HILLESHEIM VS. LEN EPSTEIN

***HEARING ON MOTION IN RE: ATTORNEYS FEES**

FILED BY: EPSTEIN, LEN I.

TENTATIVE RULING:

Defendants' unopposed motion for attorneys' fees is granted for the reasons stated in the motion.

The court has reviewed the Declaration of Len Epstein and the legal bills attached as Exhibit B to it. The nature of the work and the legal rate are reasonable and substantial evidence supports them. The court awards \$13, 866.50 in attorneys' fees.

The additional attorneys fees sought for bringing this motion are denied, as they are not included as part of Section 12.14 of the Operating Agreement for STEHM, where attorneys fees are allowed for "conducting the suit" and the suit had already been dismissed.

13. 9:00 AM CASE NUMBER: C25-02141

CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

On the Court's own motion, the hearing is continued to 9:00 a.m. on January 26, 2026.

14. 9:00 AM CASE NUMBER: MSC21-02266

CASE NAME: WITTENBERG VS ROADS OF HACIENDA HOMES, INC.

HEARING ON DEMURRER TO: PLAINTIFF LAURA WITTENBERG'S 4TH AMENDED COMPLAINT.

FILED BY:

TENTATIVE RULING:

On the Court's own motion, the hearing on the demurrer to fourth amended complaint is continued to January 12, 2026. Effective January 5th, 2026, this case is assigned for all purposes to the Honorable Leonard E. Marquez in Department 34.

15. 9:00 AM CASE NUMBER: MSC21-02266

CASE NAME: WITTENBERG VS ROADS OF HACIENDA HOMES, INC.

HEARING ON DEMURRER TO: 1ST AMENDED CROSS-COMPLAINT OF HACIENDA HOMES, INC.

FILED BY: